

		Defendant has not filed an opposition to the motion. Plaintiff has shown the parties entered a binding settlement agreement which included a stipulation to enter judgment pursuant to Code of Civil Procedure section 664.6 if Defendant did not comply. Defendant failed to make timely payment. Therefore, the motion is granted.
5.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff's Motion to Quash Deposition Subpoenas for Employment Records is CONTINUED to 8/11/26 at 9:00 a.m., in Dept. C32. As an initial matter, Defendants' opposition was untimely as it was filed and served on 6/23/26 but due on 6/16/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing Cal. Rules of Court, rule 3.1300, subd. (d)]; <i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [citations omitted].) The Court exercises its discretion and will accept the late filed opposition. On 6/24/26, Plaintiff filed a declaration stating the untimely opposition "substantially prejudiced Plaintiff because it effectively eliminated Plaintiff's ability to prepare and file a meaningful reply before the hearing." (ROA 57; Vogt Decl., ¶ 7.) As such, Plaintiff requests the Court not consider the opposition or allow Plaintiff additional time to file a reply. (Vogt Decl., ¶¶ 9-10.) The Court grants Plaintiff's request and continues the motion to allow Plaintiff the additional time to file its Reply. The Reply will be due 5 court days before the hearing. No further briefing other than the Reply is permitted.
6.	KRUPP VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY 2023-01370850	MOTION FOR LEAVE TO FILE CROSS-COMPLAINT Defendant California Automobile Insurance Company ("CAIC") moves for leave to file a cross-complaint against R.S. Builders is GRANTED. CAIC's Request for Judicial Notice of Exhibits 1 and 2 is GRANTED. A defendant can cross-complain against a codefendant or third person not yet a party to the action only if the cause of action asserted "(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. §428.10, subd. (b).)